

The Assam (Alteration of Boundaries) Act, 1951

[ACT NO. 47 OF 1951]

(*As on the 28th August, 2025*)

IndiaCode

LIST OF ABBREVIATIONS USED

Cl.,cls.	*for*	Clause, clauses.
Ins.	„	Inserted.
Notifn.	„	Notification.
S., ss.	„	Section, sections
Sch.	”	Schedule.
Subs.	„	Substituted
w.e.f.	„	with effect from.

IndiaCode

THE ASSAM (ALTERATION OF BOUNDARIES) ACT, 1951

ARRANGEMENT OF SECTIONS

SECTIONS

1. Short title.
2. Alteration of the boundaries of Assam.
3. Amendment of the First Schedule to the Constitution.

THE SCHEDULE.

IndiaCode

THE ASSAM (ALTERATION OF BOUNDARIES) ACT, 1951

ACT NO. 47 OF 1951

[1*st September*, 1951.]

An Act to alter the boundaries of the State of Assam consequent on the cession of a strip of territory comprised in that State to the Government of Bhutan.

BE it enacted by Parliament as follows:—

1. Short title.—This Act may be called the Assam (Alteration of Boundaries) Act, 1951.

2. Alteration of the boundaries of Assam.—On and from the commencement of this Act, the territory of the State of Assam shall cease to comprise the strip of territory specified in the Schedule, which shall be ceded to the Government of Bhutan, and the boundaries of the state of Assam shall be deemed to have been altered accordingly.

3. Amendment of the First Schedule to the Constitution.—In the first paragraph of Part A of the First Schedule to the Constitution, under the heading "TERRITORIES OF STATES", after the words "Assam Tribal Areas", the following words shall be inserted, namely:—

> "but shall not include the territories specified in the Schedule to the Assam (Alteration of Boundaries) Act, 1951".

———

IndiaCode

THE SCHEDULE

(*See* section 2)

The strip of territory measuring 32.81 square miles lying to the south of Bhutan within 26° 45' and 27° North Latitude and 91° 15' and 91° 45' East Longitude, demarcated on the west, north and east by boundary pillar Nos. 90, 91, 92, 93 and 94 erected in 1930-31, and on the south by boundary pillar Nos. 90, 91, 92, 93 and 94 erected in 1950.

———

IndiaCode

STATEMENT OF OBJECTS AND REASONS

By Article 4 of the Indo-Bhutan Treaty of Friendship concluded on the 8th August, 1949, and subsequently ratified, the Government of India undertook to cede to the Government of Bhutan a strip of territory measuring 32.81 square miles known as Dewangiri on the border of kamrup district in the State of Assam. The territory had not been surveyed or demarcated and it could not, therefore, be handed over to Bhutan immediately. Under the provisions of article 3 of the Constitution which came into force subsequently, the implementation of this undertaking requires an Act of Parliament.

Since it involves diminishing the area and altering the boundaries of Assam, the views of the Legislature of that State, with respect to the proposal to introduce a Bill for this purpose and the provisions thereof have been ascertained in accordance with the proviso to article 3 of the Constitution. As its meeting held on the 27th March, 1951 the Legislative Assembly of Assam adopted the following resolution: —

"The House recommends to the President of the Indian Union the transfer of square miles of territory in the Dewangiri hill block to the Bhutan Government as the Schedule below in pursuance of the Treaty of Darjeeling of 8th August, 1949."

This Bill is designed to effect the transfer in accordance with the Constitution.

IndiaCode

NEW DELHI:
The 4th April, 1951.

JAWAHARLA NEHRU.